

9. *Citibank N.A. v. Flores*, Case No. CIVSB2601711
Defendant's Motion to Quash Service of Summons
8/7/26, 9:00 a.m., S-17

The Court is inclined to **DENY**.

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 612.) Service of summons can occur essentially in four manners: (1) personal service [Code Civ. Proc., § 415.10]; (2) substituted service [Code Civ. Proc., § 415.20]; (3) by mail with copy of notice of acknowledgment [Code Civ. Proc., § 415.30]; and (4) by publication if person cannot be served otherwise. (Code Civ. Proc., § 415.50.)

The self-represented Defendant in this collections matter filed this motion asserting that he was not personally served and, generally, that service was improper. As a preliminary matter, the Court notes that the motion was filed pursuant to a *general* appearance, which appears to submit movant to the jurisdiction of the action; so, the motion back be moot in the first place.

More importantly, the proof of service indicates personal service at 4:35 PM on February 2, 2026, by a registered process server. (See POS, filed February 18, 2026.) The service was effectuated at Defendant's home address. (See Flores Decl., ¶13 [confirming residence].) When service is done by a registered process server, there is a rebuttable presumption as to the stated facts. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Here, Defendant simply asserts that the POS incorrect. Tellingly, Defendant includes video of the process server "placing documents on the front doormat, taking a photograph, and leaving." (Flores Decl., ¶16.) Thus, it appears that Defendant confirms service but quibbles because it was not handed to him personally and because the description the process server uses to describe him. (Flores Decl., ¶18[incorrect height and weight in POS].)

However, the Code allows that a party "may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of a competent member of the household . . ." (Code Civ. Proc., § 415.20 (b).) Thus, even if the description of Defendant is less-than perfect (or, even if it was a *different* member of the household), service appears to have been effectuated.

10. *Velasco Macias v. Lyft Inc., et al*, Case No. CIVSB2519010
Defendant's Motion to Compel Arbitration
8/7/26, 9:00 a.m., S-17

The Court would **CONTINUE** this matter to allow proper briefing.

In this case, a notice of non-opposition to the motion was filed by movant on July 30, 2026. Typically, the Court would grant an unopposed motion, as the failure to oppose acts as a concession to the arguments set forth therein. However, in this case, it appears that Plaintiff electronically filed an opposition on the afternoon of August 6, 2026.

The Court would hear argument on whether there is good cause to consider the late-filed opposition. Presuming good cause for argument's sake, the Court would continue to allow a Reply and proper consideration.

11. *Jefferson v. Warren, et al*, Case No. CIVSB2414011
Defendant County's Motion for Attorneys' Fees and Costs
8/7/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: The Court would **OVERRULE** in their entirety.

As to the Motion: The Court would **GRANT** the County's request for attorneys' fees and costs in the amount of \$15,770.16.

Case Summary

This is personal injury litigation. Plaintiff, a minor, alleges that on April 27, 2023, she was waiting at a school bus stop when she was struck by a vehicle driven by Defendant Warren. As such, she filed suit against Defendant Warren and also filed against the County, the State, and the Snowline Joint Unified School District. She initially filed suit on April 29, 2024. Plaintiff filed a First Amended Complaint (FAC) on February 14, 2025, in the light of a demurrer. (Tentative, Feb. 27, 2025 [holding the demurrer moot].) That FAC was subject to a sustained demurrer on July 8, 2025. (Tentative, July 8, 2025.) That ruling allowed thirty days leave to amend. (*Ibid.*)

Relevant here, Plaintiff failed to amend within the allotted timeline, and the County applied *ex parte* on October 23, 2025, for an order dismissing Plaintiff's action for failure to amend. The Court continued the matter to November 5, 2025, to allow further briefing. In the interim Plaintiff attempted to file a Second Amended Complaint (SAC) on October 24, 2025. This filing